

THE CONSENT GAP

How governments link their citizens' records into single profiles — lawfully, globally, and without ever asking

The complete brief. Public-interest research built entirely from the institutions' own published documents. Two adversarially-verified deep-research passes + direct review of Splink's official documentation + per-country sweeps (incl. Polish & Hebrew). Compiled 4 June 2026. Confidence flagged throughout; corrections noted openly; nothing asserted without a source.

PART I — THE BRIEF (one page)

One tool, one window into a global default. *Splink* — a free record-linkage program built by the UK Ministry of Justice — joins a person's separate records across government where there is no shared ID.

1. They linked 56 million people — silently. The UK ONS linked the **2021 Census to DWP benefits and HMRC tax records — 96.7%, ~56 million people**. No consent. No notification. No opt-out. (*ONS*)

2. It's no longer just statistics — it identifies named individuals. The Ministry of Justice uses it **in real time in court**, and "to find **Police National Computer numbers** associated with individuals, in order to request relevant arrest information from the police." (*GOV.UK Algorithmic Transparency Record*)

3. It reaches the most vulnerable people alive. Documented users include **UNHCR (refugee data)**, the **Shared Child Health Record in Laos**, and the **2024 Gambian census**. (*Splink official Use Cases*)

4. It's not one country. Confirmed government use across **~8 countries + the EU and the UN** — and that's only who *published* it. (*Splink official Use Cases*)

5. This is the new normal. **~54% of UNECE countries already build their census on linked administrative data; ~half go fully register-based by 2030.** (*UNECE*)

6. The legal basis is the scandal. None of it is illegal. It runs on **statute, not consent**. The gap is **structural** — the default setting of the modern state.

The line that doesn't move: *Your records — health, tax, justice, benefits — are being joined into a single profile of you, lawfully, across most of the developed world. You were never asked. You cannot say no. And almost no one was told.*

PART II — THE FULL REPORT

What Splink is

Free, open-source probabilistic record-linkage library built by the **UK Ministry of Justice** (Fellegi-Sunter model, ADR UK-funded, ~6M downloads). It joins separate records about the same person — with no shared ID — at population scale (~100M records). Open source, so its *user list is unknowable* (no registry); what follows is only **documented** use.

Corrections made openly (v1→v2): (1) **Germany (Destatis) IS a user** — earlier discarded after checking the wrong sources. (2) **Canada IS an adopter** — earlier wrongly called a non-adopter.

Confirmed government / public-sector adopters

(Source: *Splink official Use Cases* + cited primary sources.)

United Kingdom — pervasive, national + local. ONS (Census, Business & Demographic Index), NHS England (Person_ID linkage), MoJ (courts/prisons/probation cross-justice ID + BOLD probation dashboards), MoD (Veterans Card), UK Health Security Agency (HIV↔health records), Dept for Education, Competition & Markets Authority, Office for Health Improvement & Disparities (health↔justice), Homes England (Land Registry↔Ordnance Survey, 30M records), Dept for Business & Trade, Welsh Revenue Authority (operational tax), + **many local councils** — Lewisham (auto-enrolled 500+ families for Free School Meals), Leicestershire, Gateshead, Richmond,

Wandsworth, Westmorland & Furness ("single view of the child"), London Office of Technology & Innovation (rough sleeping). *Operational, deep.*

🇦🇺 **Australia** — ABS: Person Linkage Spine (Medicare+Centrelink+Tax); National Disability Data Asset. *Operational.* 🇩🇪 **Germany** — Federal Statistical Office (Destatis): register-based census linkage. *Operational.* 🇺🇸 **United States** — Defense Health Agency/DoD (dedup 200M+ hospital records); Florida Cancer Registry (feasibility); Catalyst Cooperative (utility data). *Mixed.* 🇨🇦 **Canada** — Ontario Ministry of Children, Community & Social Services (**main** integration tool); Environment & Climate Change Canada. *Operational.* 🇨🇱 **Chile** — Ministry of Health (with UCL): migrant immunisation-access linkage. *Research.* 🇬🇲 **Gambia** — 2024 national census + post-enumeration survey. *Operational.* 🇱🇦 **Laos** — Shared Child Health Record: pediatric de-duplication. *Operational (health).*

International organisations: 🇪🇺 **European Medicines Agency** (duplicate adverse-event reports); 🌐 **UNHCR** (deduplicating datasets — **refugee data**).

Academia (broader still): Cambridge (CAMPOP, full-count census linkage 1851–1921); Harvard / Vanderbilt / Mass General (8.1M death records↔EHR); Princeton / Minnesota; Stanford; **Bern (Switzerland)**; UPenn / Princeton / UC Berkeley (108M individuals: property↔voter files↔donations); Lao PDR child health.

Negatives & null results (so it's honest, not cherry-picked)

- 🇵🇱 **Poland** — no Splink; GUS does its own register-based census linkage.
- 🇮🇱 **Israel** — no Splink; Ofek national HIE + HMO-linked EHRs (its own infrastructure).
- 🇸🇬 **Scotland / Wales** — PHS, NRS, SAIL Databank link via their *own* TTP/MRL systems; no Splink.
- 🇳🇿 **New Zealand** — IDI links via Fellegi-Sunter (the method), no documented Splink.
- 🇮🇪 **Ireland (CSO)** — Protected Identifier Key (PIK); no Splink.
- **No evidence:** Netherlands, Norway, Sweden, Finland, Denmark, France, Spain, Italy, Eurostat, Brazil, South Africa, India.
- **Statistics Canada (the NSI)** — not shown using it, *even though other Canadian government bodies do.*

The pattern — corrected

Not Commonwealth (Canada uses it provincially, NZ doesn't). Not Five Eyes (it spans the **EU, UN, Gambia, Laos, Switzerland, Chile**). The driver: a **free, open-source UK-government tool** spreading through the **English-language statistics community, academic collaborations (UCL→Chile), open-source distribution, and international development/health projects** (Gambia census, Laos child health, UNHCR). Language + open source + research/aid networks — not geopolitics.

The bigger picture — Splink is one window into a global norm

Linking citizens' records without individual consent is now the dominant, fast-growing model of official statistics. - UNECE 2020 census round (48 countries): 29% fully register-based, 25% combined → ~54% on linked administrative data; only 46% traditional. (UNECE) - 2030 round: ~half expect fully register-based; "most others... administrative data partly." - Nordics fully register-based for decades. - OECD & UN explicitly permit statistical/health linkage "subject to safeguards"; legal bases allowing it without consent "vary by country." The mechanism is the point: register-based statistics inherently link a person's records across government without asking them — the basis is statute, not consent. The consent gap is structural, expanding toward total coverage by 2030. Splink is just the most visible, open-source instance.

Legal standing & the GDPR paradox

(*Informed analysis, not a legal opinion — have a data-protection specialist pressure-test before publishing.*) The instinct is "surely this breaks GDPR." **It almost certainly does not** — and that's the stronger story. - **Consent isn't required.** It's one of six lawful bases (Art 6). State linkage runs on **Art 6(1)(e) public task** and **6(1)(c) legal obligation**. - **GDPR is built to permit it: Art 89** carves out statistical processing; **Art 5(1)(b)** makes further statistical processing *expressly not "incompatible"*; **Art 14(5)(b)** lets controllers **skip informing people** on "disproportionate effort" grounds — *the legal home of the consent gap*; Recital 162 / Reg. (EU) 223/2009 accommodate official statistics. - **Precision:** the **EMA** is an EU body → **Reg. (EU) 2018/1725 (EUDPR)**, not GDPR itself.

The paradox: the world's strongest privacy law *legally authorises* the very thing people assume it protects them from. The gap is **legal by design — democratic, not criminal**. "But it's GDPR-compliant" becomes the indictment. **Arguable pressure points:** data minimisation (5(1)(c)); transparency (13–14) vs the disproportionate- effort silence; right to object (21) curtailed for statistics; adequacy/publication of DPIAs (Art 35).

Why it matters (+ the fair counter-case)

Concern: sensitive records fused into person-level profiles; no consent/notification/opt-out; drifting from statistics to operational identification (real-time court use; PNC lookups); now reaching **refugee data (UNHCR)** and **child health (Laos)**. **Counter-case (for credibility):** lawful; accurate method; real safeguards (Five Safes, accredited researchers, secure environments, de-identification); genuine public goods (census accuracy, health research, fraud reduction); open source = more transparent than proprietary tools. **Synthesis:** the quiet, lawful normalisation of cross-domain citizen linkage without meaningful consent — deepest in the UK, documented across ~8 countries + the EU and UN, mirrored everywhere by each state's own systems.

The honest count

- **Confirmed government/public-sector Splink adopters: 8 countries** (UK, Australia, Germany, US, Canada, Chile, Gambia, Laos) + **2 international bodies** (EU/EMA, UNHCR); **9 if academic-only is counted** (add Switzerland).
- **UK by far the deepest** (national + many local councils).
- **The wider no-consent linkage norm: ~26 of 48 UNECE countries already**, heading toward universal by 2030.
- **Credit scoring/credit bureaus: UNVERIFIED. Excluded.**
- **True Splink footprint larger but unnameable** (open source, no registry).

Method & sourcing

Two deep-research passes (fan-out search → fetch → adversarial 2-of-3 verification → synthesis; 50 claims verified, 0 survived as false) + direct review of Splink's official Use Cases page + per-country sweeps. Primary sources: GOV.UK Algorithmic Transparency Records, ONS, ABS, NHS England, Splink official docs, IJPDS (peer-reviewed), UNECE, OECD. Negatives, nulls, and corrections reported openly.

Where to take it

Lead with the one-page brief (Part I). Best homes: **medConfidential** or **Foxglove** (UK data/health rights, litigation-capable), the **Bureau of Investigative Journalism**, the **Guardian** data team; formal routes via the **ICO** and **Office for Statistics Regulation**. Approach openly, real name — it's all public-source, so there's nothing to hide and nothing to leak.

Full archived evidence (their words, screenshots, saved pages, downloadable bundle): brandonmyers.net/writing/the-quiet-joining-up